

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #2	CCRB Case #: 201807540	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/29/2018 3:25 PM	Location of Incident: Mott Avenue and Beach 20th Street; the 101st Precinct Stationhouse	Precinct: 101	18 Mo. SOL 2/29/2020	EO SOL 2/29/2020	
Date/Time CV Reported Thu, 09/13/2018 11:08 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/13/2018 11:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Devane	04046	955875	101 PCT
2. Officers			
3. SGT Harrison Berkowitz	661	941417	101 PCT
4. POM Lukasz Solis	14287	943832	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Velotti	09432	949767	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM James Devane	Abuse: On August 29, 2018, at Mott Avenue and Beach 20th Street in Queens, Police Officer James Devane refused to provide his name to § 87(2)(b)	
B.POM James Devane	Abuse: On August 29, 2018, at Mott Avenue and Beach 20th Street in Queens, Police Officer James Devane refused to provide his shield number to § 87(2)(b)	
C.SGT Harrison Berkowitz	Abuse: On August 29, 2018, at Mott Avenue and Beach 20th Street in Queens, Sergeant Harrison Berkowitz refused to provide his shield number to § 87(2)(b)	
D.SGT Harrison Berkowitz	Abuse: On August 29, 2018, at Mott Avenue and Beach 20th Street in Queens, Sergeant Harrison Berkowitz refused to provide his name to § 87(2)(b)	
E.POM Lukasz Solis	Abuse: On August 29, 2018, at Mott Avenue and Beach 20th Street in Queens, Police Officer Lukasz Solis refused to provide his name to § 87(2)(b)	
F.POM Lukasz Solis	Abuse: On August 29, 2018, at Mott Avenue and Beach 20th Street in Queens, Police Officer Lukasz Solis refused to provide his shield number to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
G.POM James Devane	Abuse: On August 29, 2018, at the 101st Precinct Stationhouse, Police Officer James Devane refused to provide his name to § 87(2)(b)	
H.POM James Devane	Abuse: On August 29, 2018, at the 101st Precinct Stationhouse, Police Officer James Devane refused to provide his shield number to § 87(2)(b)	
I. Officers	Abuse: On an unknown date, at Mott Avenue and Beach 20th Street in Queens, officers stopped the vehicle in which § 87(2)(b) was an occupant.	
J. Officers	Abuse: On an unknown date, at Mott Avenue and Beach 20th Street in Queens, officers stopped the vehicle in which individuals were occupants.	
K. Officers	Abuse: On an unknown date, at Beach 20th Street and Mott Avenue in Queens, officers searched § 87(2)(b)	
L. Officers	Abuse: On an unknown date, at Mott Avenue and Beach 20th Steet in Queens, officers searched individuals.	

Case Summary

On September 5, 2018, § 87(2)(b) filed this complaint via 311 with IAB under IAB Log number § 87(2)(g). On September 13, 2018, § 87(2)(b) filed a complaint with the CCRB about the same incident via phone. On September 14, 2018, the CCRB received the IAB complaint under IAB Log number § 87(2)(g) (Board Review 14).

On August 28, 2018, at approximately 3:25 p.m. § 87(2)(b) was in an argument with another party, § 87(2)(b) at the intersection of Beach 20th Street and Mott Avenue in Queens. § 87(2)(b) contacted the police, and Police Officer James Devane, Police Officer Lukasz Solis and Sergeant Harrison Berkowitz, all of the 101st Precinct Anti-Crime team arrived on scene. They apprehended § 87(2)(b) who asked for their names and shield numbers, which they allegedly did not provide (**Allegations A-F-Abuse of Authority-Refusal to Provide Name and Refusal to Provide Shield Number;** § 87(2)(g) § 87(2)(b) was then taken to the 101st Precinct stationhouse, where he was lodged in the holding cell with § 87(2)(b) and, eventually, § 87(2)(b). While § 87(2)(b) was in the holding cells, he requested Police Officer Devane's name and shield number. Police Officer Devane allegedly provided neither his name nor his shield number (**Allegations G- Abuse of Authority- Refusal to provide Name;** § 87(2)(g) (**Allegation H- Abuse of Authority-Refusal to Provide Shield Number;** § 87(2)(g)

On an unknown date in 2018, § 87(2)(b) was a passenger in a van. Unidentified officers allegedly stopped the van and searched him and other passengers (**Allegations I and J- Abuse of Authority- Vehicle Stop;** § 87(2)(g)) (**Allegations K and L: Abuse of Authority- Search of Person;** § 87(2)(g)

No video footage of either incident was found.

Findings and Recommendations

Allegation (A) Abuse of Authority: On August 28, 2018, at the intersection of Mott Avenue and Beach 20th Street in Queens, Police Officer James Devane refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: On August 28, 2018, at the intersection of Mott Avenue and Beach 20th Street in Queens, Police Officer James Devane refused to provide his shield number to § 87(2)(b)

Allegation (C) Abuse of Authority: On August 28, 2018, at the intersection of Mott Avenue and Beach 20th Street in Queens, Sergeant Harrison Berkowitz refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: On August 28, 2018, at the intersection of Mott Avenue and Beach 20th Street in Queens, Sergeant Harrison Berkowitz refused to provide his shield number to § 87(2)(b)

Allegation (E) Abuse of Authority: On August 28, 2018, at the intersection of Mott Avenue and Beach 20th Street in Queens, Police Officer Lukasz Solis refused to provide his name to § 87(2)(b)

Allegation (F) Abuse of Authority: On August 28, 2018, at the intersection of Mott Avenue and Beach 20th Street, Police Officer Lukasz Solis refused to provide his shield number to

§ 87(2)(b)

On September 14, 2018, § 87(2)(b) was interviewed by the CCRB. On October 1, 2018, § 87(2)(b) gave a follow-up phone statement to the CCRB (Board Review 01). On October 2, 2018, § 87(2)(b) provided a phone statement and follow-up phone statement to the CCRB (Board Reviews 02 and 03). On October 10, 2018, § 87(2)(b) provided a phone statement to the CCRB (Board Review 04). On October 11, 2019, § 87(2)(b) provided a phone statement to the CCRB (Board Review 05). On November 26, 2018, Police Officer Devane was interviewed by the CCRB. On December 18, 2018, Sergeant Berkowitz was interviewed by the CCRB. On January 16, 2019, Police Officer Velotti was interviewed by the CCRB. On January 24, 2019, Police Officer Devane was re-interviewed by the CCRB. On February 11, 2019, Police Officer Solis was interviewed by the CCRB. Neither § 87(2)(b) nor § 87(2)(b) could be reached by the investigation (Board Review 12).

It is undisputed that § 87(2)(b) and § 87(2)(b) were in an argument at the intersection of Mott Avenue and Beach 20th Street. It is undisputed that during this interaction, § 87(2)(b) contacted members of the 101st Precinct anti-crime team, and that they arrived on the scene. It is undisputed that Police Officer Devane, after learning about the interaction from § 87(2)(b), placed § 87(2)(b) under arrest.

§ 87(2)(b) stated that one officer took him aside while two of the others interviewed § 87(2)(b) and he was then handcuffed. He stated that as he was being taken into custody, he asked for the names and shield numbers of all three officers, and all three of them refused to provide their names and shield numbers.

Police Officer Devane and Sergeant Berkowitz stated that they spoke to § 87(2)(b) when they got on scene. They denied that § 87(2)(b) ever requested their names or shield numbers. They both denied that any other officers were on scene. Police Officer Solis stated that he initially stood with § 87(2)(b) when he came on scene, and that while he did, § 87(2)(b) requested his name and shield number, which he provided.

§ 87(2)(g)

§ 87(2)(g)

Allegation (G) On August 28, 2018, in the 101st Precinct Stationhouse in Queens, Police Officer James Devane refused to provide his name to § 87(2)(b)

Allegation (H) On August 28, 2018, in the 101st Precinct Stationhouse in Queens, Police Officer James Devane refused to provide his shield to § 87(2)(b)

It is undisputed that Police Officer Devane did not provide his shield number to § 87(2)(b) § 87(2)(g).

§ 87(2)(b) stated that he requested Police Officer Devane's name and shield number when he was in the holding cell. § 87(2)(b) and § 87(2)(b) who were in the 101st Precinct holding cell at the same time as § 87(2)(b) heard § 87(2)(b) making the request both for Police Officer Devane's name and his shield number.

§ 87(2)(b) stated in his first phone statement that he did not hear how Police Officer Devane responded to § 87(2)(b)'s request for his name and shield number. In his follow-up call, he said that an officer took § 87(2)(b) aside after § 87(2)(b) was yelling in the cells, and initially stated that he believed that Police Officer Devane provided his name and shield information. When asked if Police Officer Devane gave his name and shield information, he said that he could not specifically remember the officer providing this information. § 87(2)(b) also stated that § 87(2)(b) was speaking with an officer, and requesting his name and shield information. § 87(2)(b) did not believe that the officer with whom § 87(2)(b) was talking provided his name and shield information. § 87(2)(b) time in the 101st Precinct holding cells only overlapped with § 87(2)(b)'s by 10 to 15 minutes, and he did not hear § 87(2)(b) requesting any officer's name or shield number.

Police Officer Devane is listed on § 87(2)(b)'s arrest report as his arresting officer (Board Review 06), and he confirmed that he was the officer who primarily processed § 87(2)(b)'s arrest while § 87(2)(b) was in the holding cells. He denied that § 87(2)(b) ever requested his name or shield number information. Police Officer Devane said that as a matter of course, he provides his name to all arrestees he deals with, and that he provided his name to § 87(2)(b) during this incident. He stated that he did not provide his shield number to § 87(2)(b) during his arrest processing, because § 87(2)(b) did not request this information.

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

The iteration of Patrol Guide 209-03 in effect at the time of the incident mandated that officers provide their name and shield information to all civilians who requested it (Board Review 07).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (I) Abuse of Authority: On an unknown date, at the intersection of Mott Avenue and Beach 20th Street in Queens, officers stopped a vehicle in which § 87(2)(b) was an occupant.

Allegation (J) Abuse of Authority: On an unknown date, at the intersection of Mott Avenue and Beach 20th Street, officers

Allegation (K) Abuse of Authority: On an unknown date, at the intersection of Mott Avenue and Beach 20th Street in Queens, an officer searched § 87(2)(b)

Allegation (L) Abuse of Authority: At the intersection of Mott Avenue and Beach 20th Street in Queens, an officer searched individuals.

§ 87(2)(b) stated that plainclothes officers, who may have been the ones involved in his arrest on August 28, 2018, stopped a rented van in which he was a passenger. Officers searched him, removing his wallet and identification, and the other passengers of the vehicle. He could provide no other information than that the incident occurred one or two weeks prior to his arrest. He could provide no identifying information for the driver or other passengers, and the investigation was not able to identify them.

Police Officer Devane, Sergeant Berkowitz, Police Officer Velotti, and Police Officer Solis all denied interacting with § 87(2)(b) prior to the date of his arrest.

Warrant Audits were requested for all of the times that NYPD officers searched for § 87(2)(b)'s identification information between July 1, 2018 and September 2018. These audits yielded no results (Board Review 08).

§ 87(2)(g)
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§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one prior CCRB complaint. This is the first for which he has been a victim (Board Review 09).
 - § 87(2)(b) § 87(2)(b)
- Police Officer Devane has been a member of service for five years. He has been a subject in three complaints, and two allegations, none of which were substantiated. § 87(2)(g) § 87(2)(g)
- Sergeant Berkowitz has been a member of service for 12 years. He has been a subject in seven complaints and 12 allegations, none of which were substantiated. § 87(2)(g) § 87(2)(g)
- Police Officer Solis has been a member of service for 12 years. He has been a subject in seven complaints and eight allegations, of which one was substantiated.
 - Case 201710526 involved a substantiated allegation of refusal to provide name and shield number. The Board recommended Command Discipline-B and the NYPD imposed Instructions.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of March 6, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 11).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date